

Radheshyam & Ors vs State & Anr on 27 April, 2017

Author: Pushpendra Singh Bhati

Bench: Pushpendra Singh Bhati

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Misc. (Pet) No. 1394 / 2015

1. Radheyshyam S/o Sohan Lal Sharma, aged about 32 years,
2. Sohan Lal S/o Late Shri Prathvi Raj Sharma, age 62 years,
3. Smt. Bhagwanti W/o Sohan La,
All b/c Sharma (Sevak), R/o Mangal Ward, P.S. Mangalward,
District Chittorgarh.

----Petitioners

Versus

1. State of Rajasthan.
2. Smt. Pratibha @ Poonam W/o Radheshyam Sharma, R/o Village
Semadi, Tehsil Sarada, District Udaipur.

----Respondents

For Petitioner(s) : Mr. Vinod Choudhary
For Respondent(s) : Mr. V.S. Rajpurohit, PP

HON'BLE DR. JUSTICE PUSHPENDRA SINGH BHATI

Judgment / Order 27/04/2017

1. The matter comes up upon an application for preponement of the case. The preponement application is allowed.
2. With consent of the learned counsel for the parties, the matter is finally heard.
3. The petitioner has preferred this criminal misc. petition under Section 482 Cr.P.C. for quashing of FIR No.55/2015 registered at Police Station Semari, District Udaipur for the offences under Sections 498-A, 406 & 323 of IPC.
4. The petitioner No.2 was duly served on 30.10.2015 but but probably has lost interest in the litigation due to her divorce (2 of 3) [CRLMP-1394/2015] with the present petitioner.
5. Counsel for the petitioner has furnished a certified copy of the divorce decree passed under Section 13-B of Hindu Marriage Act on 07.04.2016 which is taken on record. It is recorded in the divorce decree, there was a series of litigation between the parties and finally they have arrived at a conclusion that they should live separately. It is also observed by learned court below that a compromise has been arrived between the parties to have the divorce by mutual consent. Appropriate maintenance has also been granted for the daughter by the petitioner. In light of decree of divorce by mutual consent on 07.04.2016 under Section 13-B of Hindu Marriage Act, counsel for

the petitioner states that all disputes have been resolved and finally both the parties as per counsel for the petitioner have remarried.

6. Learned Public Prosecutor however states that there are two FIRs or similar facts, in earlier FIR, there has been an acquittal of the petitioner and the subsequent FIR is still pending against the petitioner.

7. After hearing both the parties and perusing the record of the case as well as judgment of divorce by mutual consent dated 07.04.2016, this Court is of the opinion that the matter pertains to prolong the matrimonial dispute and it seems that the parties have finally chosen to part ways with each other and have thus, approached appropriate Court for seeking divorce by mutual consent under Section 13-B of Hindu Marriage Act and the same was granted vide judgment dated 07.04.2016. It is also noted by (3 of 3) [CRLMP-1394/2015] this Court that an earlier FIR was there and the petitioner was acquitted under Section 498 & 406 of IPC, and the continuance of the subsequent FIR was the same dispute pertaining to matrimonial cruelty.

8. In light of the aforesaid observation, this Court deems it appropriate to quash and set aside the FIR No. 55/2015 registered at P.S. Semari, District Udaipur for the offence under Sections 498-A, 406 & 323 of IPC.

9. The criminal misc. petition is accordingly allowed.

(DR. PUSHPENDRA SINGH BHATI)J. zeeshan/